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STATE OF COLORADO OFFICE OF ADMINISTRATIVE COURTS 633 17th Street, Suite 1300, Denver, Colorado 80202	13 JUL 29 PM 3:14 OFFICE OF ADMINISTRATIVE COURTS
STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS, Petitioner, vs. MELISSA MILLIGAN, LPC, LICENSE NO. 5870, Respondent.	^ COURT USE ONLY ^ Case No.: PCE 2013-_____
NOTICE OF DUTY TO ANSWER, NOTICE TO SET, NOTICE OF HEARING, NOTICE OF CHARGES, AND OPTION TO ENGAGE IN ALTERNATIVE DISPUTE RESOLUTION	

TO: MELISSA MILLIGAN

NOTICE OF DUTY TO ANSWER

YOU ARE HEREBY NOTIFIED that, pursuant to section 24-4-105(2)(b), C.R.S., you are required to file a written answer to the attached Notice of Duty to Answer, Notice to Set, Notice of Hearing, Notice of Charges, and Option to Engage in Alternative Dispute Resolution ("Notice of Charges") with the Office of Administrative Courts, 633 Seventeenth Street, Suite 1300, Denver, Colorado 80202 ("OAC"), within 30 days after the mailing of this Notice of Charges. You must also mail a copy of such answer to the attorney for the State Board of Licensed Professional Counselor Examiners ("Board") who has signed this Notice of Charges.

If you fail to file your written answer **within 30 days**, without further notice an order entering a default decision may be issued against your Colorado professional counselor license for the relief requested in the Notice of Charges or such other penalties which may be provided for by law.

NOTICE TO SET

YOU ARE HEREBY NOTIFIED that the attorney for the Board will appear by telephone at 11:15 a.m. on Tuesday, August 6, 2013, in OAC in order to set a date and obtain a location for a hearing regarding the following Notice of Hearing and Notice of Charges. You may be present in person or by counsel, or you may make

prior arrangements to be reached by telephone at the time and date specified above by contacting the setting clerk prior to the day of setting at (303) 866-5797. In the event you do not appear, a date will be obtained and you will be notified in writing of the hearing date, time, and place. **You have the right to an expedited hearing and the option to request a prehearing conference before an administrative law judge, at which the parties will obtain a hearing date, arrange an expedited discovery schedule, and obtain motion dates as necessary.**

NOTICE OF HEARING

YOU ARE HEREBY NOTIFIED that pursuant to sections 12-43-221, 223 and 224, C.R.S., and 24-4-104 and 105, C.R.S., a hearing will be held before an authorized administrative law judge at a time and location to be determined pursuant to the preceding Notice to Set for the purpose of determining whether the license to practice professional counseling of Melissa Milligan should be revoked, or other lawful discipline imposed, for a violation or violations of sections 12-43-222(1)(b), (g), (h), (i), (l), (m), (p), (r), and (u), C.R.S., which provide as follows:

12-43-222. Prohibited activities – related provisions. (1) A person licensed, registered, or certified under this article violates this article if the person:

(b) Has violated or attempted to violate, directly or indirectly, or assisted or abetted the violation of, or conspired to violate any provision or term of this article or rule promulgated pursuant to this article or any order of a board established pursuant to this article.

(g)(l) Has acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which the person practices. Generally accepted standards may include, at the board's discretion, the standards of practice generally recognized by state and national associations of practitioners in the field of the person's professional discipline.

(h) Has performed services outside of such person's area of training, experience or competence.

(i) Has maintained relationships with clients that are likely to impair such person's professional judgment or increase the risk of client exploitation, such as treating employees, supervisees, close colleagues, or relatives.

(l) Has failed to refer a client to an appropriate practitioner when the problem of the client is beyond such person's training, experience, or competence.

(m) Has failed to obtain a consultation or perform a referral when such failure is not consistent with generally accepted standards of care.

(p) Has failed to comply with any of the requirements pertaining to mandatory disclosure of information to clients pursuant to section 12-43-214.

(r) Has engaged in sexual contact, sexual intrusion, or sexual penetration, as defined in section 18-3-401, C.R.S., with a client during the period of time in which a therapeutic relationship exists or for up to two years after the period in which such a relationship exists.

(u) Has falsified or repeatedly made incorrect essential entries or repeatedly failed to make essential entries on patient records.

YOU ARE FURTHER NOTIFIED that, at the hearing in this matter, you shall have the right to appear in person and/or by legal counsel, to present evidence on your own behalf, to cross-examine any witnesses presented by the Board, and to rebut any evidence presented by the Board. You may also have subpoenas issued on your behalf in compliance with OAC General Services Rules of Procedure Rule 18.

NOTICE OF CHARGES

The Board charges and alleges as follows:

1. Melissa Milligan ("Respondent") initially was licensed to practice professional counseling in the State of Colorado on October 18, 2010, being issued license number 5870, was licensed at all times relevant to this matter, and is now so licensed.

2. The Board has jurisdiction over the person of Respondent and the subject matter of this Notice of Charges.

3. Beginning on May 11, 2011, Respondent provided counseling to a client, B.K., in both group and individual sessions. The identity of B.K. is known to Respondent.

4. Respondent treated client B.K. on a regular basis until February 16, 2012.
5. B.K. suffered from Post-Traumatic Stress Disorder and substance abuse.
6. From approximately December 2011 until April 2012, while B.K. was in a therapeutic relationship with Respondent and/or during a period within two years after the therapeutic relationship ended, Respondent engaged in a sexual relationship with B.K.
7. Respondent and B.K. took one or more vacations together during the therapeutic relationship.
8. Respondent allowed B.K. to reside at her residence during the therapeutic relationship.
9. Respondent brought B.K. with her to various outings in the Denver metropolitan area, including her daughters, during the therapeutic relationship.
10. Respondent bought B.K. gifts during the therapeutic relationship.
11. Although Respondent knew that B.K. was an alcoholic, Respondent served him wine.
12. During the course of therapy, Respondent told B.K. to adjust his prescription medications.
13. Respondent failed to provide a mandatory disclosure statement to B.K. either verbally or in writing.
14. Respondent failed to document treatment sessions with B.K. during a period from mid-September to late October 2011.
15. Respondent held "impromptu" sessions with B.K. that were not fully documented in B.K.'s records.
16. Respondent failed to update her address with the Board.
17. On July 17, 2013, the Board summarily suspended Respondent's license to practice psychology, pursuant to section 24-4-104(4), C.R.S.

Count I
Substandard Practice

18. Paragraphs 1 through 17 are incorporated by reference as if fully set forth.

19. Respondent acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which she practices; namely, professional counseling.

20. Respondent's conduct is subject to discipline by the Board pursuant to section 12-43-222(1)(g), C.R.S.

Count II
Dual Relationship

21. Paragraphs 1 through 20 are incorporated by reference as if fully set forth.

22. Respondent maintained a relationship with B.K. that was likely to impair her professional judgment and/or increase the risk of client exploitation.

23. Respondent's conduct is subject to discipline by the Board pursuant to section 12-43-222(1)(i), C.R.S.

Count III
Sexual Contact with Client

24. Paragraphs 1 through 23 are incorporated by reference as if fully set forth.

25. Respondent engaged in sexual contact, sexual intrusion, or sexual penetration, as defined in section 18-3-401, C.R.S., with B.K. during the period of time in which a therapeutic relationship existed or for up to two years after the period in which such a relationship existed.

26. Respondent's conduct is subject to discipline by the Board pursuant to section 12-43-222(1)(r), C.R.S.

Count IV
Violation of Board Rule 8

27. Paragraphs 1 through 26 are incorporated by reference as if fully set forth.

28. By failing to update her address with the Board, Respondent violated Board Rule 8.

29. Respondent's conduct is subject to discipline by the Board pursuant to section 12-43-222(1)(b), C.R.S.

Count V
Record Keeping

30. Paragraphs 1 through 29 are incorporated by reference as if fully set forth.

31. Respondent falsified or repeatedly made incorrect essential entries or repeatedly failed to make essential entries in B.K.'s record.

32. Respondent's conduct is subject to discipline by the Board pursuant to section 12-43-222(1)(u), C.R.S.

Count VI
Record Keeping

33. Paragraphs 1 through 32 are incorporated by reference as if fully set forth.

34. Respondent failed to keep appropriate records in violation of Board Rule 16.

35. Respondent's conduct is subject to discipline by the Board pursuant to sections 12-43-222(1)(b) and (u), C.R.S.

Count VII
Services Outside of Training

36. Paragraphs 1 through 35 are incorporated by reference as if fully set forth.

37. By adjusting B.K.'s medication, Respondent practiced beyond her training.

38. Respondent's conduct is subject to discipline by the Board pursuant to section 12-43-222(1)(h), C.R.S.

Count VIII
Failure to Refer

39. Paragraphs 1 through 38 are incorporated by reference as if fully set forth.

40. By adjusting B.K.'s medication, Respondent practiced beyond her training and failed to refer B.K. to an appropriate practitioner who would have had the appropriate training to adjust medications.

41. Respondent's conduct is subject to discipline by the Board pursuant to section 12-43-222(1)(l), C.R.S.

Count IX
Failure to Refer

42. Paragraphs 1 through 41 are incorporated by reference as if fully set forth.

43. By adjusting B.K.'s medication, Respondent practiced beyond her training and failed to refer B.K. to an appropriate practitioner, which was not consistent with generally accepted standards of practice.

44. Respondent's conduct is subject to discipline by the Board pursuant to section 12-43-222(1)(m), C.R.S.

Count IX
Mandatory Disclosure Statement

45. Paragraphs 1 through 44 are incorporated by reference as if fully set forth.

46. Respondent's failure to provide a mandatory disclosure statement either verbally or in writing is in violation of section 12-43-214, C.R.S.

47. Respondent's conduct is subject to discipline by the Board pursuant to section 12-43-222(1)(p), C.R.S.

WHEREFORE the Board prays for an Order revoking Respondent's license to practice professional counseling in the State of Colorado, and for such other relief as deemed proper and just.

DATED this 29th day of July, 2013.

JOHN W. SUTHERS
Attorney General



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Assistant Attorney General
Business & Licensing Section
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Attorneys for the State Board of Licensed
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